Minor Consultancy Contract (Non-Capital Works)
Mid-Western Development Contributions Plan 2027

RFQ 2026/93

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Formal Instrument

Dated _____ 20 _____

Parties

Principal

Name	Mid-Western Regional Council
ABN	96 149 391 332
Address	86 Market Street Mudgee NSW 2850

Consultant

Name	[## insert]
ACN	[## insert]
Address	[## insert]

Background

(a) The Principal wishes to engage a Consultant to perform the Services.

(b) The Consultant has represented to the Principal that it has experience and expertise in performing services equivalent to the Services.

(c) The Consultant has agreed to perform the Services in accordance with the terms and conditions of the Contract.

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Signing Page

EXECUTED AS AN AGREEMENT

EXECUTED by **[## insert authorised signatory's name and title]** for **Mid-Western Regional Council ABN 96 149 391 332** in the presence of:	)))
.....	Authorised signatory
.....	Full name
.....	Usual address
.....	Witness
.....	Full name
.....	Usual address

[***User Note: Select the appropriate execution block for the Consultant.***]

[User Note: Use for a company with at least two directors and/or company secretaries]

Executed by **[## insert name of Consultant]** **ACN [##insert Consultant's ACN]** in accordance with section 127(1) of the *Corporations Act 2001* (Cth):	)))
.....	Signature of director
.....	Full name
.....	Usual address
.....	Signature of director/secretary
.....	Full name
.....	Usual address

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[User Note: Use for a company with a sole director and secretary]

Executed by **[## insert] ACN [## insert]** in accordance with section 127(1) of the *Corporations Act 2001* (Cth):

..... Signature of director

..... Full name

..... Usual address

[User Note: Use for an individual]

Executed by **[## insert]** in the presence of:

..... Signature of Consultant

..... Signature of witness

..... Full name

..... Usual address

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General Conditions

It is agreed

1. Definitions

In the Contract, except where the context otherwise requires:

Approval means any consent, licence, permit, authorisation, determination, certificate, permission, approval or the like issued, required by, or to be obtained from, any Authority, or under any applicable Legislative Requirement, which must be obtained to carry out the Services or use any Deliverables;

Associate means a Subconsultant and any officer, employee, agent, contractor, licensee, consultant, invitee, client or adviser of the Consultant or a Subconsultant, and includes the Key Personnel;

Australian Privacy Principles has the meaning given in the *Privacy Act 1988* (Cth);

Authority means any government (including a Minister of the Crown in any right) or government department, semi-governmental, municipal, statutory (including a statutory corporation), judicial, public or administrative body, entity, agency or authority, or person having jurisdiction in any way in connection with the Services, or any part of the Services;

Brief means the Principal's requirements for the Services as identified or set out in Schedule 2;

Business Day means a day that is not a Saturday, Sunday or public holiday in the State of New South Wales;

Claim includes any claim, action, demand, proceeding or suit for or in respect of, or an entitlement to any adjustment to the Fee (or, where Item 4 specifies that Milestone Amounts are payable, any Milestone Amount), any Loss or Liability, any relief from any of the Consultant's obligations arising out of, or in any way in connection with, the Contract or any other right or remedy, whether arising under, out of, or in connection with, the Contract or otherwise at law or in equity, including in tort (including negligence);

Completion is that stage in the carrying out and completion of the Services when:

(a) in respect of a Milestone (other than Completion of the Services as a whole):

  (i) the relevant Deliverables or Services included in such Milestone have been completed in accordance with the Contract; and

  (ii) the Consultant has done everything which the Contract requires it to do prior to, as a condition precedent to, or as a requirement of, Completion of the relevant Milestone; and

(b) in respect of the Services as a whole:

  (i) if there are Milestones (other than Completion of the Services as a whole), a notice under clause 7(b) certifying Completion of each such Milestone has been issued in respect of each such Milestone;

  (ii) the Services have been completed in accordance with the Contract; and

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(iii) the Consultant has done everything which the Contract requires it to do prior to, as a condition precedent to, or as a requirement of, Completion of the Services as a whole;

Consultant means the person stated in Item 2 as the Consultant;

Consultant's Material means those components of the Deliverables which have been developed by the Consultant for general use in the Consultant's work and have not been specifically developed for incorporation in the Deliverables;

Contract means the contractual relationship between the Principal and the Consultant as constituted by the Letter of Award (subject to clause 2.2), the Formal Instrument, these General Conditions, Schedule 1 to Schedule 3 (inclusive), the other documents (if any) listed in Item 11 and any document (not otherwise referred to in this definition) which is referred to in the Letter of Award (if any) as forming part of the Contract;

Contract Date means:

(a) the date of execution of the Formal Instrument, being:

(i) if counterparts are not used, the date on which it is executed by the last of the parties; or

(ii) if counterparts are used, the date on which those executed counterparts are exchanged by the parties; or

(b) if:

(i) a Letter of Award is issued by the Principal and countersigned by the Consultant prior to the date of execution of the Formal Instrument; or

(ii) a Letter of Award is issued by the Principal and countersigned by the Consultant and the Formal Instrument is not executed by the parties,

the date the Consultant provides the countersigned copy of the Letter of Award to the Principal;

Copyright Act means the *Copyright Act 1968* (Cth);

Date of Milestone Completion means in respect of each Milestone, the date specified in the notice issued by the Principal's Representative under clause 7(b) as the date of achievement of Completion of the relevant Milestone, or where another date is determined in any litigation or other binding dispute resolution process as the date upon which Completion of the relevant Milestone was achieved, that other date;

Deliverables means any materials, drawings, sketches, designs, advices, plans, specifications, data, models, samples, patterns, calculations, computations, reports, photographs, statements, diagrams, software, documents or information and the like which the Consultant is required to prepare or provide under the Contract or are necessary for the Consultant to prepare in order to perform the Services in accordance with the Contract;

Direction includes agreement, approval, assessment, authorisation, certificate, decision, demand, determination, direction, explanation, instruction, notice, order, permission, rejection, request or requirement;

Deliverable Error means, in respect of, or as between, any one or more of the Deliverables, any:

(a) non-compliance with the Contract or a Legislative Requirement; or

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(b) Discrepancy;

Discrepancy means any error, omission, discrepancy, ambiguity, fault, inaccuracy, inconsistency, incompleteness, lack of integration, lack of co-ordination or lack of detail;

Dispute has the meaning given in clause 12.1;

Fee means:

(a) where Item 4 specifies that Milestone Amounts are payable, the aggregate of the Milestone Amounts; and

(b) where Item 4 specifies that Milestone Amounts are not payable, the amount specified in Item 4, including all disbursements and expenses (other than the Reimbursable Expenses, if any), as adjusted in accordance with the Contract;

Formal Instrument means the formal instrument to which these General Conditions are attached;

General Conditions means these General Conditions of Contract, being clauses 1 to 20 (inclusive) of this document;

GST Act means the *A New Tax System (Goods and Services Tax) Act 1999* (Cth);

Information may include (as applicable) information as to any risks of, actual or suspected occurrences of, and remedial action taken in respect of, Modern Slavery but excludes "personal information" as defined in the *Privacy and Personal Information Protection Act 1998* (NSW) or information which tends to identify individuals;

Insolvency Event means any of the following events:

(a) the Consultant, being an individual or a partnership, including an individual who:

(i) commits an act of bankruptcy, is made bankrupt or has a bankruptcy petition presented against it or presents its own petition;

(ii) makes a proposal for a scheme of arrangement or a composition; or

(iii) has a deed of assignment or deed of arrangement made, accepts a composition, is required to present a debtor's petition or has a sequestration order made, under Part X of the *Bankruptcy Act 1966* (Cth);

(b) the Consultant becomes insolvent or informs the Principal or the Principal's Representative in writing or its creditors generally that it is insolvent or is unable to proceed with the Contract for financial reasons;

(c) the Principal forms the view that the Consultant is unable to proceed with the Contract for financial reasons;

(d) in respect of the Consultant, being a corporation:

(i) notice is given of a meeting of creditors with a view to the Consultant entering into a deed of company arrangement;

(ii) it enters into a deed of company arrangement with creditors;

(iii) a receiver, receiver and manager, administrator, controller, provisional liquidator or liquidator is appointed to the Consultant;

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(iv) an application is made to a court for the winding up of the Consultant and that application is not stayed within 14 days;

(v) a winding up order is made; or

(vi) the Consultant resolves by special resolution that it be wound up voluntarily (other than for a members' voluntary winding-up);

(e) the Consultant assigns any of its property for the benefit of creditors or any class of them;

(f) an encumbrancee takes any step towards taking possession or takes possession of any assets of the Consultant or exercises any power of sale;

(g) the Consultant has a judgment or order given against it in an amount exceeding $10,000.00 (or the equivalent in another currency) and that judgment or order is not satisfied or quashed or stayed within 21 days after being given;

(h) execution is levied against the Consultant; or

(i) any comparable event to those listed in paragraphs (a) to (h) above occurs in any jurisdiction;

IP Rights means all statutory and other proprietary rights (whether registered or unregistered) in respect of inventions, innovations, patents, utility models, designs, circuit layouts, copyrights (including future copyrights), confidential information, trade secrets, know-how, trademarks and all other rights in respect of intellectual property;

Item means an item in Schedule 1;

Key Personnel mean each of the individuals employed by the Consultant, from time to time, pursuant to clause 5.4(a)(i);

Legislative Requirements include any statute, regulation or subordinate legislation in force in the State of New South Wales, Approvals (including all conditions of Approvals), the common law and the principles of equity as applicable in the State of New South Wales, requirements of Authorities; and fees and charges in connection with the preceding;

Letter of Award means the letter (if any) identified in Item 3 or such other letter signed on behalf of the Principal awarding the Contract to the Consultant;

Liability means any liability, debt, obligation, loss, damage, cost, compensation, charge or expense;

Loss means any damage, loss, cost (including legal costs on a solicitor/own client basis, expense, duty, obligation or liability;

Milestone means:

(a) Completion of the Services as a whole; and

(b) each other milestone (if any) specified in Item 4;

Milestone Amount means (where Item 4 specifies that Milestone Amounts are payable), in respect of each Milestone, the amount (if any) specified in Item 4, including all disbursements and expenses (other than Reimbursable expense), as adjusted in accordance with the Contract;

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Modern Slavery has the same meaning as in the Modern Slavery Laws and includes slavery, servitude, forced labour, human trafficking, debt bondage, organ trafficking, forced marriage and the exploitation of children;

Modern Slavery Laws means, as applicable, the *Modern Slavery Act 2018* (NSW) and the *Modern Slavery Act 2018* (Cth);

Modern Slavery Offence has the same meaning as in the *Modern Slavery Act 2018* (NSW);

Party means a party to the Contract;

Phase means a phase of the Services identified in Item 6 (if any), in each case as more particularly described in the Brief;

Phase 1 means the first Phase (if any) identified in Item 6;

PID Act means the *Public Interest Disclosure Act 2022* (NSW);

Privacy Laws means any law which relates to the privacy of information about individuals and with which the Consultant must comply, including the Australian Privacy Principles, and any applicable code of practice and any applicable State or Territory health privacy legislation;

Principal means the person identified in Item 1(a) as the Principal;

Principal's Representative means the person named as the Principal's Representative in Item 1(b) or such other person as is appointed by written notice from Principal;

Professional Indemnity Insurance means a policy of insurance to cover claims for breach of professional duty (whether owed in contract or otherwise), a breach of Schedule 2 of the *Competition and Consumer Act 2010* (Cth) or a breach of any other relevant Legislative Requirement by the Consultant or its Associates in carrying out the Services and which provides for at least one automatic reinstatement;

Proportionate Liability Legislation means Part 4 of the *Civil Liability Act 2002* (NSW) and any other Legislative Requirement providing for proportionate liability;

Public Liability Insurance means a policy of public liability insurance insuring the Consultant, the Principal, the Principal's Representative and all Subconsultants (unless otherwise approved in writing by the Principal's Representative), for their respective rights, interests and liabilities to third parties and liability to each other, for loss of, or damage to, property and the death of, or injury to, any person (other than liability which the law requires to be covered under a workers compensation insurance policy) arising out of, or in any way in connection with, the Services;

Reimbursable Expenses means those disbursements and expenses (if any) detailed in Schedule 3;

Schedule of Rates means Schedule 4;

Services means the services specified in the Brief and any services necessarily incidental to them, including the provision of all services, professional advice and skills required for or incidental to the provision of such services, the provision of Deliverables and any such services performed before the date of this Contract, as varied in accordance with this Contract;

Statement of Business Ethics means the document titled "Mid-Western Regional Council Statement of Business Ethics" dated 30 January 2023 located at

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https://www.midwestern.nsw.gov.au/files/assets/public/v/1/documents-on-exhibition/policies/statement-of-business-ethics/review-statement-of-business-ethics-clean-version-30-jan-2023.pdf, including any updates, variations or amendments to the same;

Subconsultant means a consultant or contractor engaged by the Consultant to perform any part of the Services;

Subcontract means the contract between the Consultant and a Subconsultant;

Subcontractor's Statement means a statement in the form of the NSW Subcontractor's Statement regarding Workers Compensation, Payroll Tax and Remuneration published by Revenue NSW and available at https://www.revenue.nsw.gov.au/help-centre/resources-library/forms/payroll/subcontractor-statement-worker-compensation-payroll-tax-opt011.pdf, which statement will be applicable and required if the Services are performed in NSW;

Variation means a variation to the Services, including any increase, addition, decrease, omission or change to the scope of the Services; and

WHS Legislation means the *Work Health and Safety Act 2011* (NSW), the *Work Health and Safety Regulation 2025* (NSW), and any other Legislative Requirement relating to work health and safety.

2. Obligations and acknowledgement

2.1 Performance by the Consultant

The Consultant must:

(a) perform the Services:

(i) in accordance with the Contract and all applicable Legislative Requirements; and

(ii) exercising the standard of professional skill, care and diligence to be expected of a professional provider of services of a similar scale, nature and complexity to the Services;

(b) comply with all Directions of the Principal or the Principal's Representative given, or purported to be given, under a provision of the Contract;

(c) make certain that the Services and the Deliverables are (or will be, as applicable) suitable, appropriate and adequate for the purposes stated in, or which can be reasonably inferred from, the Contract;

(d) perform the Services with due expedition and without delay and otherwise in accordance with the Principal's reasonable Directions and timing requirements; and

(e) take all necessary steps to minimise the effect of any delay to the Services.

2.2 Acknowledgements and agreements

(a) The Parties acknowledge and agree that, if the Formal Instrument is executed by the Parties, the Letter of Award (if any) no longer forms part of the Contract, however any documents (not otherwise referred to in the definition of 'Contract' in clause 1) which are referred to in the Letter of Award as forming part of the Contract will remain as part of the Contract.

(b) The Consultant acknowledges and agrees that:

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(i) its obligations and Liabilities arising out of, or in connection with, the Contract remain unaffected notwithstanding any Variation, or any receipt, review, rejection or approval of, or comment, or Direction on, the Deliverables (or failure to do any one or more of those things in whole or in part), by the Principal, the Principal's Representative or any of their respective officers, employees, agents, consultants or contractors; and

(ii) it is not entitled to make any Claim against the Principal arising out of, or in connection with, any Discrepancies in or between the documents constituting the Contract or any information provided to the Consultant by the Principal, the Principal's Representative or any of their respective officers, employees, agents, consultants or contractors, or for any errors or omissions therein or for any failure to provide any other information.

(c) The parties agree that:

(i) this Contract does not create any relationship of employment, partnership or joint venture between the Principal and the Consultant, or between the Principal and any Associate; and

(ii) the Consultant is an independent contractor for the provision of the Services to the Principal on the terms of this Contract.

2.3 Deliverables

The Consultant must:

(a) without limiting the general nature of clause 2.1(d), prepare and progressively submit the Deliverables to the Principal's Representative by the dates, or within the times, required by the Contract or as otherwise Directed by the Principal's Representative; and

(b) make certain that the Deliverables comply with the Brief, all applicable Legislative Requirements and all other provisions of the Contract and are accurate and suitable, appropriate and adequate for the purposes stated in, or which can be reasonably inferred from, the Contract.

2.4 Correcting Deliverable Errors

If the Principal or the Principal's Representative discovers a Deliverable Error, the Principal's Representative may Direct the Consultant to resolve or rectify the Deliverable Error and may specify the timing within which the Consultant is required to take the relevant action.

Notwithstanding the previous paragraph, the Consultant must resolve and rectify all Deliverable Errors. The Consultant accepts the risk of and is not entitled to make any Claim arising out of, or in connection with, Deliverable Errors, including any Directions of the Principal's Representative under this clause 2.4.

2.5 Review and comment on Deliverables

The Principal's Representative may reject any Deliverable (and, in its absolute discretion, state its reasons) if, in its reasonable opinion, the Deliverable (or any part) does not comply with the requirements of the Contract.

If any Deliverable is rejected, the Consultant must promptly amend and resubmit the amended Deliverable to the Principal's Representative within 5 Business Days after the date of such rejection and this clause 2.5 will reapply.

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No receipt, review, rejection or approval of, or comment or Direction on, the Deliverables (or failure to do any one or more of those things in whole or in part) by the Principal or the Principal's Representative will relieve the Consultant from, or alter or affect, the Consultant's Liabilities or responsibilities whether under the Contract or otherwise.

2.6 Phases

The Consultant acknowledges that the Services may have been divided into a number of Phases (if so identified in Item 6) and where the Services have been divided into Phases (as identified in Item 6):

(a) agrees to commence the performance of that part of the Services comprising Phase 1 immediately after the Contract Date;

(b) must not commence any part of the Services comprising a particular Phase (other than Phase 1) unless and until the Principal's Representative has issued a written Direction to the Consultant, Directing the Consultant to commence the performance of the Services comprised in that particular Phase; and

(c) acknowledges and agrees that:

(i) the Principal may procure the Principal's Representative to issue a Direction under clause 2.6(b), or decide not to procure the Principal's Representative to issue a Direction under clause 2.6(b), in its absolute discretion;

(ii) the Principal is not obliged to procure the Principal's Representative to issue a Direction under clause 2.6(b) in respect of a particular Phase by any particular date, or at all;

(iii) no failure by the Principal's Representative to issue, or delay by the Principal's Representative in issuing, a Direction under clause 2.6(b) will constitute a Direction to terminate the Contract under clause 13.1(b);

(iv) it will not be entitled to make, and the Principal will not have any liability in respect of, any Claim arising out of, or in any way in connection with, any delay by the Principal's Representative in issuing, or failure by the Principal's Representative to issue (whether by a particular date, or at all) a Direction under clause 2.6(b) in respect of a particular Phase; and

(v) notwithstanding any other provision of the Contract, it will not be entitled to payment of any part of the Fee relating to a Phase (other than Phase 1), except to the extent the Principal's Representative has issued a Direction under clause 2.6(b) with respect to that Phase.

3. Legislative Requirements

3.1 The Consultant must satisfy and comply with all Legislative Requirements and apply for and obtain all Approvals, except to the extent otherwise specified in Item 7.

3.2 The Consultant acknowledges and agrees that it must provide all required assistance to the Principal in relation to applying for and obtaining those Approvals specified in Item 7.

4. Rights in documentation

4.1 All IP Rights and property in the Deliverables (excluding the Consultant's Material) vest in the Principal upon creation. To the extent that the Principal is not the owner of the IP Rights described in this clause 4.1, the Consultant assigns, and must ensure that its Associates

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assign, those rights to the Principal immediately once they have been created.

4.2 The Consultant must do everything necessary to perfect such vesting or assignment of IP Rights in clause 4.1, including after this Contract is terminated. The Principal grants to the Consultant an irrevocable licence to use the Deliverables for the Services.

4.3 The Consultant grants to the Principal, to the extent necessary for the Principal to have the benefit of the Services, an irrevocable, perpetual, non-exclusive, royalty free:

(a) licence (with a right to sub-licence) to use the Consultant's Material (and all IP Rights subsisting in the Consultant's Material); and

(b) sublicence to use any IP Rights licensed to the Consultant by a third party,

and the Consultant warrants that it has the right to grant this licence and sublicence and must do everything necessary to perfect such licences and sublicences.

4.4 The Consultant:

(a) represents and undertakes to the Principal that the Deliverables, and the Principal's use of the Deliverables, will not infringe any IP Rights; and

(b) indemnifies the Principal against any Claim against, or Loss suffered or incurred by, the Principal arising out of, or in any way in connection with, any alleged or actual infringement.

4.5 In respect of the Principal's use of any things produced by or on behalf of the Consultant in the performance of the Services (including the Deliverables), the Consultant:

(a) warrants that the Principal's use of such things will not infringe any author's moral rights under the Copyright Act or similar legislation in any jurisdiction;

(b) must obtain written consent from any author, for the purposes of the Copyright Act, to the Principal doing anything, or omitting to do anything (before or after the date of this Contract), which may otherwise infringe the author's moral rights under the Copyright Act or similar legislation in any jurisdiction; and

(c) indemnifies the Principal against any Claims against, or Losses suffered or incurred by, the Principal arising out of, or in any way in connection with, any actual or alleged infringement of any author's moral rights under the Copyright Act, or similar legislation in any jurisdiction, in connection with the Services or any things produced by or on behalf of the Consultant in the performance of the Services (including the Deliverables).

4.6 For the purposes of clause 4.5(a), the Principal's use of any things produced by or on behalf of the Consultant in the performance of the Services (including the Deliverables) includes the Principal's right to reproduce, publish, copy, adapt, communicate to the public, materially distort, destroy, mutilate or in any way change such things:

(a) with or without attribution of authorship;

(b) in any medium; and

(c) in any context and in any way it sees fit.

4.7 The Contract and any documents or other information relating to the Contract or the Services are confidential, and the Consultant must not disclose any of these without the prior written consent of the Principal, except to the extent that such disclosure is required for the Consultant to carry out its obligations under the Contract.

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4.8 If required in writing by the Principal, the Consultant must enter into a separate agreement not to disclose to anyone else any confidential matter even after the Completion of the Services or earlier termination of the Contract.

5. Personnel and Subcontracting

5.1 The Principal's Representative

The Principal's Representative will give Directions and carry out all other functions under the Contract as agent of the Principal (and not as an independent certifier, assessor or valuer).

5.2 Subcontracting

The Consultant must not subcontract the performance of any part of the Services unless it has obtained the Principal's Representative's prior written approval (which approval may be conditional).

Any approval to subcontract the performance of part of the Services will not relieve the Consultant of its obligations or Liabilities arising out of, or in connection with, the Contract.

The Consultant will be liable to the Principal for the acts and omissions of its Associates as if they were the acts and omissions of the Consultant.

5.3 Novation of Subconsultants

The Principal may, at any time, Direct the Consultant to novate to the Principal or its nominee any of the Subcontracts and if the Principal so Directs, the Consultant must execute, and procure the execution by the relevant Subconsultant of, a deed of novation in a form provided by, or acceptable to, the Principal.

5.4 Key Personnel

(a) The Consultant must:

(i) employ those people specified in Item 8, in the positions specified in Item 8;

(ii) subject to clause 5.4(a)(iii), not replace the people referred to in clause 5.4(a)(i) (or any replacement) without the Principal's Representative's prior written approval; and

(iii) if any of the people referred to in clause 5.4(a)(i) (or any replacement) dies, becomes seriously ill or resigns from the employment of the Consultant, replace them with persons approved by the Principal's Representative) of at least equivalent experience, ability and expertise.

(b) The Consultant warrants that each of the Key Personnel is competent to carry out the Services and has the necessary skills, knowledge, experience, qualifications and licences to carry out the Services.

(c) The Consultant must immediately inform the Principal if any Key Personnel is unable to carry out the Services.

5.5 Associates

(a) The Consultant must pay:

(i) all amounts and provide all benefits in respect of its engagement or employment of any Associate, including salary, wages, superannuation,

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allowances, loadings, penalty rates and any other amount or benefit to which the Associate is entitled under applicable laws or industrial instruments (including any awards); and

(ii) any taxes in respect of its employment or engagement of any Associate, including income tax and payroll tax.

(b) The Principal has no obligation, and is not required, to make the payments stated in clause 5.5(a) and the Consultant must pay to the Principal immediately on demand the amount of all Loss of the Principal in respect of the payments stated in clause 5.5(a).

(c) If, despite clauses 5.5(a) and 5.5(b), the Principal is required by law to make any payments stated in clause 5.5(a) then, without limiting clause 5.5(b), the Principal may deduct the amount of those payments from the Fee or any amounts owing to the Consultant from time to time.

5.6 Proportionate Liability Legislation

The Parties agree that, to the extent permitted by law, the operation of Proportionate Liability Legislation is excluded in relation to all and any rights, obligations and liabilities under or otherwise in connection with, the Contract or the Services, whether such rights, obligations or liabilities are sought to be enforced in contract, in tort (including negligence) or otherwise at law or in equity.

The Consultant further agrees that, in any Subcontracts which it enters into for the performance of the Services, it will include provisions that, to the extent permitted by law, effectively exclude the operation of Proportionate Liability Legislation in relation to all rights, obligations or liabilities which are sought to be enforced in contract, in tort (including negligence) or otherwise at law or in equity.

6. Variations

6.1 The Consultant must not vary the Services except as Directed in writing by the Principal's Representative under clause 6.2.

6.2 From time to time, prior to the Date of Milestone Completion in respect of the Services as a whole, the Principal's Representative may at any time Direct the Consultant to carry out or perform a Variation which is nevertheless of a character and extent contemplated by, and capable of being carried out under the provisions of the Contract.

6.3 No Direction by the Principal's Representative will constitute a Direction under clause 6.2 unless it is in writing and expressly states that it is a Direction under clause 6.2. The power to direct a Variation omitting any part of the Services includes the power to have such omitted work carried out by the Principal or by others, including at the same time as the Consultant is carrying out the Services.

6.4 Subject to the provisions of the Contract, the Principal's Representative must, within a reasonable time, value each Variation which the Consultant is required to carry out under a Direction of the Principal's Representative under clause 6.2 or any other event or circumstance which another provision of the Contract provides will be valued under this clause 6.4, in accordance with the following decreasing order of precedence:

(a) prior agreement between the parties (if any);

(b) rates and prices set out in the Schedule of Rates (to the extent the Principal's Representative considers them to be applicable); and

(c) reasonable rates or prices, which valuation will be increased:

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(i) in the case of deductions, by the percentage for profit specified in Item 9(b) but not overheads; and

(ii) in all other cases, by the percentage for profit and overheads specified in Item 9(a).

6.5 That valuation will be added to or deducted from (as applicable), the Fee (or, where Item 4 specifies that Milestone Amounts are payable, the relevant Milestone Amount).

7. Completion

(a) When the Consultant is of the opinion that Completion of a Milestone has been achieved, the Consultant may request the Principal's Representative to issue a notice of Completion of the Milestone, providing the Principal's Representative with all necessary information to demonstrate that Completion of the relevant Milestone has been achieved.

(b) Within 15 Business Days of a notice under clause 7(a), the Principal's Representative must either issue a notice certifying the date on which Completion of the relevant Milestone was achieved or reasons for not doing so. The Principal's Representative may (in its absolute discretion) issue a notice certifying the date on which Completion of the relevant Milestone was achieved whether or not the Consultant has issued a request under clause 7(a).

(c) A notice under clause 7(b) will not:

(i) constitute approval by the Principal of the Consultant's performance of its Contract obligations;

(ii) be taken as an admission or evidence that the Services (or any part of the Services, including any Deliverable) comply with the Contract; or

(iii) prejudice any rights or powers of the Principal or the Principal's Representative.

8. Payment

8.1 Fee is total compensation

Except for adjustments expressly permitted by the terms of the Contract, the Consultant agrees that the Fee (and Reimbursable Expenses) (if any) constitutes the total compensation payable by the Principal to the Consultant for the performance of the Services.

8.2 Payment by the Principal

Subject to receipt of a tax invoice for the Fee under clause 8.3 (accompanied by the Subcontractor's Statement, if applicable), the Principal must, subject to and in accordance with the terms of the Contract, pay the Consultancy the Fee by way of periodic payments as set out in Item 4.

8.3 Payment upon receipt of tax invoice

Subject to clause 8.5 and clause 8.6, payments must be made within 30 days of receipt by the Principal of a valid tax invoice (as prescribed under the GST Act) from the Consultant for the amount owing on account of the Fee, submitted in accordance with Item 5.

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8.4 Reimbursable Expenses

Where Reimbursable Expenses are included in Schedule 3, the Principal will reimburse the Consultant the Reimbursable Expenses in accordance with the Contract provided that:

(a) they have been properly and reasonably incurred by the Consultant in carrying out the Services in accordance with the Contract;

(b) the Consultant submits proof of expenditure; and

(c) such Reimbursable Expenses are not otherwise paid or payable by the Principal to the Consultant under the Contract (including in accordance with an adjustment to the Fee (or, where Item 4 specifies that Milestone Amounts are payable, any relevant Milestone Amount)).

8.5 Milestone Amounts

Notwithstanding any other term of the Contract, where Item 4 specifies that Milestone Amounts are payable:

(a) the Consultant will have no entitlement to payment of any part of the Milestone Amount or the Fee in respect of a Milestone unless Completion of the relevant Milestone has been achieved; and

(b) the Consultant's entitlement to payment on account of the Fee in respect of each Milestone is limited to the relevant Milestone Amount.

8.6 Set off

Without limiting any other right that the Principal may have under the Contract or otherwise at law or in equity, the Principal may retain, deduct, withhold or set-off from moneys otherwise due to the Consultant:

(a) any:

(i) debt or other moneys due from the Consultant to the Principal; or

(ii) bona fide Claim to money which the Principal has or may have against the Consultant, or any other Liability or Loss under clause 11,

whether under the Contract or otherwise in connection with the Services; and

(b) any amount that the Principal is permitted or obliged to withhold from payment to the Consultant in accordance with any Legislative Requirement.

8.7 Payment on account

Neither the issue of a tax invoice nor the payment of monies by the Principal will be evidence of the value of the Services performed, the achievement of Completion in respect of a Milestone, or an admission of liability, evidence that Completion in respect of a Milestone has been achieved, or evidence that the Services have been performed in accordance with the Contract, but will be payment on account only.

9. GST

In this clause 9 words that are defined in the GST Act have the same meaning as given in the GST Act.

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Except as otherwise provided by this clause 9 or elsewhere in the Contract, all consideration payable under the Contract in relation to any supply is exclusive of GST.

If GST is payable in respect of any supply made by a supplier under the Contract, subject to the following paragraph, the recipient will pay to the supplier an amount equal to the GST payable on the supply at the same time and in the same manner as the consideration for the supply is to be provided under the Contract.

The supplier must provide a tax invoice to the recipient before the supplier shall be entitled to payment of the GST payable under the preceding paragraph.

10. Insurances

The Consultant must:

(a) have in force from the Contract Date, and thereafter maintain with an insurer and on terms both satisfactory to the Principal's Representative, insurances in accordance with Item 10;

(b) make certain that each of its Subconsultants described in Item 10(c) has in force and maintains a professional indemnity insurance policy for an amount not less than the amount set out in Item 10(c) as applicable to each relevant Subconsultant; and

(c) before the commencement of the Services, and whenever requested by the Principal's Representative from time to time, the Consultant must provide the Principal's Representative with evidence (to the satisfaction of the Principal's Representative) that all insurances required by the Contract have been effected and are current.

11. Liability

The Consultant indemnifies the Principal from and against any Claims against or Liability or Loss suffered or incurred, by the Principal arising out of, or in any way in connection with:

(a) loss of, or damage to, the property of the Principal or any other person; or

(b) personal injury or death of any person,

which arises out of, or in connection with, the performance of the Services by, or any other act or omission of, the Consultant or its Associates. The Consultant's liability to indemnify the Principal under this clause 11 will be proportionately reduced to the extent that an act or omission of the Principal caused or contributed to the relevant loss, damage, injury or death.

12. Dispute resolution

12.1 Any difference or dispute that arises between the parties out of, or in connection with, the Contract (a **Dispute**) will be dealt with in accordance with this clause 12.

12.2 If a Dispute arises, then either party may give to the other party a written notice of Dispute.

12.3 If the Dispute is not resolved within 15 Business Days of the service of the notice referred to in clause 12.2 (or such longer period as may be agreed in writing), either party may commence proceedings in respect of the Dispute.

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12.4 Nothing in this clause 12 will operate to limit or otherwise affect the right of a party to institute proceedings to enforce payment due under the Contract or to seek injunctive or urgent declaratory relief.

13. Default, termination and take out

13.1 Consultant default

The Principal may immediately, by written notice to the Consultant:

(a) take out of the Consultant's hands the whole or any part of the Services remaining to be completed; or

(b) terminate the Contract,

if:

(c) the Consultant breaches the Contract and the Consultant:

(i) fails to commence action to remedy the breach within 5 Business Days after receiving written notice of default from the Principal; or

(ii) having commenced action to remedy the breach within 5 Business Days after receiving written notice of default from the Principal, fails to remedy the breach as soon as possible and in any event within 10 Business Days after receiving the Principal's written notice of default;

(d) there is a finding of serious wrongdoing or other misconduct under the PID Act involving the Consultant or an individual providing Services under the Contract; or

(e) the Consultant is subject to an Insolvency Event.

Nothing in this clause 13 will limit the Consultant's entitlement to terminate the Contract at law.

13.2 Termination for convenience

The Contract may be terminated by the Principal at any time and for any reason (regardless of default) by giving the Consultant written notice under this clause 13.2.

13.3 Consequences following termination or take out

Where the Contract is terminated or the whole or any part of the Services remaining to be completed are taken out of the Consultant's hands under this clause 13, then:

(a) if the termination or take out is under clause 13.1 or for wrongful repudiation by the Consultant, the Principal will be entitled to recover from the Consultant any Losses incurred or suffered (or that may be suffered or incurred) by it arising out of, or in connection with, such termination or take out, including any costs incurred (or that may be incurred) in completing the Services (whether by the Principal or by engaging others); or

(b) if the termination is under clause 13.2 or the Consultant has terminated the Contract, subject to compliance by the Consultant with clause 14, the Principal must, within 20 Business Days after the end of the month in which the Contract is terminated, pay the Consultant the amount which would have been payable if the Contract had not been terminated and the Consultant submitted a tax invoice in accordance with clause 8.3 for Services carried out to the date of termination.

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An amount payable to the Consultant under this clause 13.3 will be a limitation upon the Principal's Liability to the Consultant arising out of, or in connection with, the take out, termination or repudiation, and the Consultant will not be entitled to make any Claim against the Principal's arising out of, or in connection with, the take out, termination or repudiation other than for the amount payable under this clause 13.3.

14. Claims generally

14.1 If the Consultant wishes to make a Claim against the Principal in respect of any Direction (including under clause 6.2) by the Principal or the Principal's Representative or any other fact, matter or thing (including a breach of the Contract by the Principal) arising out of, or in connection with, the Services or the Contract, the Consultant must within 10 Business Days after receiving the Direction or the first day on which the Consultant could reasonably have been aware of the fact, matter or thing upon which the Claim is or will be based (as applicable), submit a written Claim to the Principal's Representative.

14.2 If the Consultant fails to strictly comply with clause 14.1, the Principal will not be liable in respect of any Claim by the Consultant arising out of, or in connection with, the relevant Direction or other fact, matter or thing (as the case may be) to which this clause 14 applies.

14.3 Except to the extent expressly provided under the Contract, the Consultant will not be entitled to make, and the Principal will not be liable in respect of, any Claim arising out of, or in connection with, the performance of the Consultant's obligations under the Contract.

15. Modern Slavery

15.1 The Consultant warrants that it has not engaged in, and does not engage in, any activity, practice or conduct in its operations that would constitute a Modern Slavery Offence under any Legislative Requirement (including Modern Slavery Laws) or otherwise contravene any laws or codes of practice in force from time to time in relation to Modern Slavery.

15.2 The Consultant must:

(a) comply with, and take reasonable steps to ensure all Associates comply with, mandatory reporting obligations under any Legislative Requirement or codes of practice in force from time to time in relation to Modern Slavery including the Modern Slavery Laws and the associated regulations; and

(b) respond to any requests for information made by the Principal's Representative concerning matters relating to any Legislative Requirements or codes of practice in force from time to time in relation to Modern Slavery, so as to enable the Principal to comply with its reporting obligations under those Legislative Requirements or codes of practice.

16. Privacy and Disclosure

The Consultant must, in respect of personal information held in connection with the Contract received from the Principal:

(a) comply with the Privacy Laws and ensure the Associates comply with the Privacy Laws;

(b) immediately notify the Principal where it becomes aware of:

(i) a breach of clause 16(a) by the Consultant or any Associate;

(ii) any investigation by the Office of the Australian Information Commissioner; and

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(c) indemnify the Principal against any Claims against, or Losses suffered or incurred by, the Principal arising out of, or in any way in connection with, a breach of clause 16(a) by the Consultant.

If the Principal gives notice to the Consultant that it proposes to audit, either directly or through its auditors, the Consultant's information handling practices, the Consultant must provide all reasonable assistance to the party conducting such an audit.

The Consultant acknowledges and agrees that the Principal may disclose the Contract (and information concerning the terms of the Contract) and other information under or in accordance with any one or more of the following:

(d) the *Government Information (Public Access) Act 2009* (NSW);

(e) the *Ombudsman Act 1974* (NSW);

(f) the *Freedom of Information Act 1982* (Cth);

(g) to satisfy the disclosure requirements of the New South Wales Auditor General or to satisfy the requirements of Parliamentary accountability; and

(h) any other Legislative Requirement.

Where the Principal has received a request for access to a document created by, or in the possession of, the Consultant or any Subconsultant that relates to the Contract, the Principal may at any time, by written notice, require the Consultant to provide, or to procure the relevant Subconsultant to provide, the document to the Principal and the Consultant must, at no cost to the Principal, promptly comply with the notice.

17. PID Act (NSW)

(a) In this clause 17, words and expressions:

(i) which are not defined in the Contract, but which have a defined meaning in the PID Act, have the same meaning as in the PID Act; and

(ii) which are defined in the Contract but, by such a definition, are given a different meaning in other clauses of the Contract to the meaning given in the PID Act, take the same meaning as in the PID Act in this clause.

(b) The Consultant acknowledges and agrees that it has a copy of, access to, or information on where to access on the Principal's website, the Principal's public interest disclosure policy and that such policy may be updated from time to time.

(c) The Consultant must ensure that all individuals involved in providing services under the Contract are made aware of the following:

(i) that those individuals are public officials for the purposes of the PID Act;

(ii) how to make a voluntary public interest disclosure;

(iii) the Principal's public interest disclosure policy; and

(iv) the fact that a person who is dissatisfied with the way in which a voluntary public interest disclosure has been dealt with may be entitled to take further action under the PID Act or another Legislative Requirement.

(d) The Consultant must notify the Principal of a voluntary public interest disclosure of which the Consultant becomes aware where either:

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(i) the disclosure relates to the Principal; or

(ii) the maker of the disclosure is known to be a public official associated with the Principal.

(e) The Consultant must notify the Principal of serious wrongdoing committed, or alleged to be committed, by an individual providing services under the Contract.

(f) The Consultant must use its best endeavours to assist in an investigation of serious wrongdoing if requested to do so by a person dealing with a voluntary public disclosure on behalf of the Principal or any other agency.

(g) The Consultant acknowledges and agrees that:

(i) the Principal has an obligation to take corrective action under section 66 of the PID Act; and

(ii) the Principal has a right to terminate the Contract in response to a finding of serious wrongdoing or other misconduct under the PID Act involving the Consultant or an individual providing services under the Contract.

(h) Where the Consultant engages a Subconsultant, the Consultant must ensure that the subcontract imposes on the Subconsultant equivalent obligations to those in this clause 17.

(i) The Consultant acknowledges and agrees that the regulations made under the PID Act may make further provision about terms that must, or must not, be included in an agency service contract or a class of agency service contracts.

(j) The Consultant indemnifies the Principal against any Claims against, or Losses suffered or incurred by, the Principal arising out of, or in any way in connection with, any breach by the Consultant of this clause 17.

18. Health and Safety

Without limiting the Consultant's obligations under this Contract or the WHS Laws, the Consultant must, in providing the Services:

(a) maintain any health and safety qualifications and certifications necessary for providing the Services;

(b) develop, implement and maintain a health and safety system to ensure compliance with WHS Laws;

(c) identify all reasonably foreseeable hazards that could give rise to a risk to health and safety in respect of the provision of the Services;

(d) ensure that risk assessments are conducted, and that control measures are in place to identify, eliminate, prevent or minimise risks to health and safety to any Associate and to any other person in respect of the provision of the Services, to the extent reasonably practicable;

(e) consult, cooperate and coordinate activities with all other persons who have a health and safety duty in respect of the provision of the Services, so far as is reasonably practicable;

(f) immediately give the Principal notice of any accident, notifiable incident (being an incident which is notifiable under WHS Laws), injury or property damage which occurs during or in respect of the provision of the Services; and

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(g) indemnify the Principal against any Claims against, or Losses suffered or incurred by, the Principal arising out of, or in any way in connection with, any failure by the Consultant to comply with its obligations or any breach of this clause 18.

19. General

19.1 Interpretation

In the Contract (unless the context otherwise requires):

(a) the word 'includes' in any form is not a word of limitation;

(b) a reference to “shall” will be construed as references to “must”;

(c) the rights and remedies under the Contract are cumulative and, except to the extent expressly provided for in the Contract, are not exclusive of any rights and remedies provided by law or equity or any other agreement; and

(d) no rule of construction applies to the disadvantage of a party on the basis that the party prepared or put forward the Contract or any part of it.

19.2 Governing law and jurisdiction

The Contract is governed by and is to be construed in accordance with the laws of the State of New South Wales. Each Party irrevocably and unconditionally submits to the non-exclusive jurisdiction of the courts of the State of New South Wales (and courts entitled to hear appeals from those courts).

19.3 Joint and several

If a Party consists of more than one person, the Contract binds them jointly and each of them severally.

19.4 The Principal may act

Without limiting any other provision of the Contract, the Principal may, either itself or by a third party, carry out an obligation under the Contract which the Consultant was obliged to carry out but which it failed to carry out within the time required by the Contract (or, where no time for performance is prescribed in the Contract, within a reasonable time). The Losses suffered or incurred by the Principal in so carrying out such a Contract obligation will be a debt due from the Consultant to the Principal.

19.5 Variation of the Contract

The Contract may only be varied by a document executed by the parties.

19.6 Entire understanding

The Contract contains the entire understanding between the Parties as to the subject matter contained in it. All previous agreements, representations, explanations and commitments, expressed or implied, affecting this subject matter are superseded by the Contract and have no effect.

19.7 Assignment and novation

The Principal may assign, novate, transfer, charge or otherwise deal with its interest in, or any of its rights, benefits or obligations arising out of, or in connection with, the Contract (including, as applicable, to any person) without the need to obtain the consent of the

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Consultant. The Consultant must, on the request of the Principal, do everything necessary to give effect to any such assignment, novation, transfer, charge or other dealing.

The Consultant must not assign, sell, novate, transfer, mortgage or charge, create or allow to exist any security interest over, or otherwise deal with all or any part of its interest in, or any of its rights, benefits or obligations arising out of, or in connection with, the Contract without the prior written approval of the Principal.

19.8 No fetter

The Contract will not in any way unlawfully restrict or otherwise unlawfully affect the unfettered discretion of the Principal to exercise any of its functions and powers under any Legislative Requirement and no exercise of any such functions or powers will entitle the Consultant to make any Claim against the Principal.

19.9 Waiver

The failure of a party at any time to insist on performance of any provision of the Contract is not a waiver of the party's right at any later time to insist on performance of that or any other provision of the Contract.

19.10 Particulars for service

(a) The particulars for service of the Principal, the Principal's Representative and the Consultant are set out in Item 1 and Item 2 (as applicable).

(b) Each Party and the Principal's Representative may change the address or email details for service by giving written notice to the others.

19.11 Time of service

A notice or other communication is deemed served:

(a) if served personally or left at the person's address, upon service;

(b) if posted within Australia to an Australian address:

(i) using regular prepaid post or registered post, 6 Business Days after posting;

(ii) using priority prepaid post or priority registered post, 4 Business Days after posting; and

(iii) using express post, 2 Business Days after posting;

(c) if posted outside Australia, 10 Business Days after posting; and

(d) if served by email, at the time the email containing the notice left the sender's email system, unless the sender receives notification that the email containing the notice was not received by the recipient.

19.12 Counterparts and execution

(a) The Contract may be executed in any number of counterparts and by the Parties in separate counterparts, each of which:

(i) may be executed electronically or in handwriting; and

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(ii) will be deemed an original whether kept in electronic or paper form, and all of which together constitute one instrument.

(b) Without limiting clause 19.12(a), if the signatures on behalf of one Party are on more than one copy of the Contract, this shall be taken to have the same effect as if all of those signatures were on the same counterpart of the Contract.

(c) Notwithstanding any other clause in the Contract, each Party consents to the electronic signing of the Contract by the other, either by means of the insertion of an electronic visual representation of the manual signature (either directly or by scanned image) of the relevant signatory, or by use of the 'DocuSign' or similar platform. Each Party warrants and agrees that the electronic signature has been used to identify the person signing and to indicate that the Party intends to be legally bound by the Contract.

(d) Any Party may provide the other Party with the ability to sign the Contract by electronic means, including by giving access to software or to an online service for this purpose.

19.13 Principal's Statement of Business Ethics

The Consultant:

(a) acknowledges and agrees that:

(i) it has revised the Statement of Business Ethics; and

(ii) it must carry out the Services in accordance with requirements of the Statement of Business Ethics,

(b) must ensure that all Associates comply with the requirements of the Statement of Business Ethics; and

(c) indemnifies the Principal against any Claims against, or Losses suffered or incurred by the Principal, arising out of or in any way in connection with any actual or alleged infringement of the Statement of Business Ethics by the Consultant or its Associates.

20. Survival

Clauses 1, 4, 5.2, 5.3, 5.5, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 19 and this clause 20 and any other provision of the Contract which, by its nature, is intended to survive termination of the Contract, will survive the termination of the Contract.

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Schedule 1 Contract Particulars

Item	Particular	Clause	Details
1.	**(a) Principal**	1	**Name**: Mid-Western Regional Council **ABN**: 96 149 391 332 **Address**: 86 Market Street, Mudgee NSW 2850 **Email**: council@midwestern.nsw.gov.au **Contact**: [*##insert*]
	(b) Principal's Representative	1	**Name**: [*##insert*] **ABN**: [*##insert*] **Address**: [*##insert*] **Email**: [*##insert*] **Contact**: [*##insert*]
2.	**Consultant**	1	**Name**: [*##insert*] **ABN**: [*##insert*] **Address**: [*##insert*] **Email**: [*##insert*] **Contact**: [*##insert*]
3.	**Letter of Award**	1 and 2.2(a)	[*##insert*]
4.	**Fee**	1 and 8	Milestone Amounts are payable. Fee: $[insert] (ex GST)] Milestone / Description / Milestone Amount (ex GST) [***insert***] / [***insert***] / $[***insert***] [***insert***] / [***insert***] / $[***insert***] [***insert***] / [***insert***] / $[***insert***]]
5.	**Date for submission of tax invoices for payment**	8	On Completion of the relevant Milestone, for the relevant Milestone Amount.
6.	**Phases**	1 and 2.8	Phase 1 – [***insert description***] Phase 2 – [***insert description***] Phase 3 – [***insert description***] Phase 4 – [***insert description***]

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Item	Particular	Clause	Details	
			Phase 5	[***insert description***]
			Phase 6	[***insert description***]
7.	**Legislative Requirements**	1 and 3	Excepted Legislative Requirements	• $20M Public Liability Insurance (Certificate of Currency) • Workers Compensation (Certificate of Currency) • $5M Professional Indemnity Insurance
			Excepted Approvals	N/A
8.	**Key Personnel**	5.4	Key Personnel	Position
			[***insert***]	[***insert***]
			[***insert***]	[***insert***]
9.	**Variation pricing – percentage for profit and/or overheads:**	6		
	(a) Percentage for profit and overheads for cases other than deductions		Nil	
	(b) Percentage for profit for deductions		Nil	
10.	**Insurance policies**	10	(a) Public Liability Insurance, for at least $***20 million*** until the date on which Completion of the Services as a whole is achieved (b) Professional Indemnity Insurance, for at least ***$5 million*** until seven years after the date on which Completion of the Services as a whole is achieved (c) The minimum amount of professional indemnity insurance to be effected by relevant Subconsultants is as follows: (*if nothing stated, all Subconsultants in the amount of $10 million*)	
11.	**Other documents**	1		

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Schedule 2 Brief

Purpose of procurement	**Project Background and Context** Council's existing Contributions Plan was adopted in 2019 and requires a comprehensive review to ensure the contributions framework reflects current growth development rates and patterns, strategic planning priorities and infrastructure needs across the Mid-Western Region. The review will also provide an opportunity to address gaps and limitations within the existing plan, including contributions relating to car parking within the Mudgee CBD and an OSOM / heavy haulage vehicle movements. Council has a draft Heavy Vehicle Contributions Plan, which is to be reviewed and incorporated into the new Contributions Plan. **Project Objectives and Purpose** The purpose of this project is to engage a suitably qualified consultant to review Council's existing Contributions Plan and prepare a new Section 7.11 and Section 7.12 Contributions Plan that provides a framework for levying development contributions across the Mid-Western Region. The new Contributions Plan should align with Council's draft and adopted strategic plans and infrastructure priorities and provide a clear and practical framework that can be effectively administered by Council.
Expected benefits to Council	The project will provide Council with an updated contributions framework that reflects current development, infrastructure needs and strategic priorities across the Mid-Western Region. It will also improve the clarity and consistency of how development contributions are applied and administered by Council.
Scope of Requirements	**Scope of Works** The scope of works for this project is to undertake a comprehensive review of Council's existing Contributions Plan and prepare a new Contributions Plan that reflects current development, likely future development, infrastructure needs and Council's strategic planning priorities. The consultant will be expected to work closely with Council throughout the project to identify issues with the existing Contributions Plan and develop an appropriate approach for the new plan. *Stage 1 – Project Inception and Review* Review the Mid-Western Regional Contributions Plan 2019, Council's adopted strategies, operational plans, delivery programs, studies, infrastructure planning documents, relevant legislative and policy requirements and approaches adopted by comparable NSW councils. It is expected that this stage will identify gaps, limitations and opportunities for improvement within the existing Contributions Plan, including its application, development types, contribution mechanisms, rates, catchments, infrastructure schedules, exemptions, credits, timing of payment and administration. *Stage 2 – Contributions Framework* Develop and test the proposed framework for the new Contributions Plan, having regard to anticipated growth, infrastructure demand, nexus and appropriate contribution mechanisms, including the appropriate application and interaction of section 7.11 contributions and section 7.12 levies across different development types and locations. This stage should also explore opportunities to better capture the infrastructure impacts of unique or emerging development scenarios, including growth associated with the Central-West Orana Renewable Energy Zone (REZ), car parking within the Mudgee Town Centre and OSOM vehicle movement. The consultant is encouraged to identify and recommend alternative or innovative approaches, contribution mechanisms or development scenarios that Council should consider where these would improve the operation and effectiveness of the new Contributions Plan. *Stage 3 – Preparation of New Contributions Plan* Prepare a new Contributions Plan incorporating the outcomes of the review and agreed contributions framework. The Contributions Plan should be clear, practical to administer and supported by the necessary calculations, work schedules, mapping and other supporting information. The consultant will be expected to support Council through public exhibition and finalisation of the Contributions Plan, including reviewing submissions and making any necessary post-exhibition amendments. The consultant should also make provision for 1 virtual and one in person briefing with Council staff outside of the project team and Councillors.

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As part of this stage, the consultant is also to prepare a practical Staff Contributions Administration Guide to support the consistent application and administration of the new Contributions Plan by Council staff.

Key Deliverables

Stage	Task & Deliverables	Timeframes#
Stage 1: Project Inception and Review	**Task:** Project commencement meeting/s, familiarisation of region and strategic policies, evaluation of current Contributions Plan. **Deliverables:** Evaluation report of existing Contributions Plan which summarises key findings and contains a recommended approach for future Contributions Plan.	Within 4 weeks of project commencement *(anticipated completion early December 2026)*
Stage 2: Contributions Framework	**Task:** Develop and test the proposed contributions framework having regard to anticipated growth, infrastructure demand, nexus, and appropriate mechanisms for levying contributions, including opportunities associated with unique and emerging development scenarios. **Deliverable:** Short discussion paper outlining the recommended contributions framework, key options considered and recommended approach for Council's review.	Within 8 weeks of project commencement *(anticipated completion mid to late January 2027, noting Christmas/New Year shut down)*
Stage 3: Preparation of New Contributions Plan	**Task:** Prepare the new Contributions Plan and support Council through exhibition and finalisation, including post-exhibition updates and briefings with staff and Councillors as required. **Deliverable:** Draft Contributions Plan for public exhibition, final Contributions Plan incorporating any post-exhibition amendments, and a Staff Contributions Administration Guide.	Draft Contributions Plan within 14 weeks, final Contributions Plan (post-exhibition) within 26 weeks of project commencement. *(anticipated completion May 2027, subject to public exhibition and Council reporting)*

Response to the RFQ

Your response to this Request for Quote must, at a minimum, address the following:

- Consultant team member experience in reviewing and preparing local infrastructure contributions plans for NSW Councils.
- Written response to the 'Expected Benefits to Council' section detailed within this RFQ, demonstrating how this will be achieved.
- Written response to the 'Scope of Works' and 'Key Deliverables' sections detailed within this RFQ.
- Identification of any innovations, alternative approaches, or additional opportunities the consultant consider would improve the effectiveness of the new Contributions Plan.
- Written response demonstrating the capability to meet the stipulated project timeframe, including milestones and strategies for addressing potential delays.
- Consultant team experience working with regional councils or councils experiencing significant growth and infrastructure pressures.
- Cost breakdown including costs by project stage and any assumptions or exclusions.

Works Produced

As per the above table, the following works are required to be produced as part of this project:

- Evaluation report of existing Contributions Plan
- Short discussion paper outlining the recommended contributions framework, key options considered and recommended approach for Council's review.

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	• Draft Contributions Plan for public exhibition. • Final Contributions Plan. • Staff contributions administration guide detailing when development contributions apply, how contributions are calculated, levied and paid, and the processes for administering exemptions, credits and other common scenarios. These documents are required to be submitted to Council in the following formats: • A full digital copy in PDF and an additional digital copy in Microsoft Word. • All reports and documents are to be consistent with the Web Content Accessibility Guidelines Version 2.0 standard, or the most up to date version. • If applicable and/or produced, all digital layers must be produced and submitted to Council for implementation within Council's MapInfo GIS. The consultant is responsible for undertaking a quality assurance review. This review should ensure that all work submitted has a consistent writing style, formatting and general presentation. The quality assurance should also ensure spelling and grammatical errors are kept to a minimum. Any response to this RFQ is to make provision for 4 revisions of draft documents (as required by Council). Consultants will be responsible for a quality assurance review. Council will not accept variation claims for poor quality work that takes extra rounds of edits to meet the standards outlined in this scope of works. The project tasks/deliverables are provided to Council is to include full intellectual rights allowing full ownership by Council.

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Schedule 3 Reimbursable Expenses

No.	Reimbursable item or expense
1.	
2.	
3.	
4.	
5.	
6.	
7.	
8.	
9.	
10.	

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Schedule 4 Rates

(Clauses 1 and 6.4)

For the avoidance of doubt, the following schedule of rates does not form part of the Contract and may only be used for the purposes of valuations under clause 6.4 or the calculation of the Fee where applicable provided in Item 4.

Role / Task	Rate $ / Hour
	$.....(GST exclusive)
	$.....(GST exclusive)
	$.....(GST exclusive)
	$.....(GST exclusive)
	$.....(GST exclusive)

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